

#	Case Name	Tentative Ruling
101	Aguilera vs. Diversified Maintenance Systems, LLC, 2025-01528656	Demurrer to Amended Complaint – OVERRULED Defendant B. BRAUN MEDICAL INC. demurs to all causes of action in Plaintiff’s first amended complaint. The demurrer is overruled. There are sufficient facts pled to put Defendant on notice of the claims against it, including allegations of being a “joint employer”. Plaintiff shall answer the first amended complaint within 20 days. Plaintiff to give notice.
102	Ascher & Associates, P.C. vs. Boyajian, 2024-01447465	Demurrer to Complaint – SUSTAINED WITHOUT LEAVE TO AMEND Defendant, Robert Boyajian, as personal representative of the Estate of Layla Boyajian (“Defendant”), demurs to the Complaint for Declaratory Relief and Enforcement of Attorney Lien of Plaintiff, Ascher & Associates, P.C. (“Plaintiff” or “AAPC”). The demurrer to the Complaint is SUSTAINED, without leave to amend. <u>Res Judicata</u> “[I]f all of the facts necessary to establish that an action is barred on res judicata grounds appear on the face of the complaint, the complaint is subject to demurrer.” (Brosterhous v. State Bar (1995) 12 Cal.4th 315, 324.) A demurrer can only be used to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) No other extrinsic evidence can be considered. (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.) The doctrine of res judicata has two aspects: claim preclusion and /issue preclusion/collateral estoppel. (People v. Barragan (2004) 32 Cal.4th 236, 252.) “Claim preclusion ‘prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.’ [Citation.] Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a

final judgment on the merits in the first suit. [Citations.]” (DKN Holdings LLC v. Faerber (2015) 61 Cal.4th 813, 824.) “If claim preclusion is established, it operates to bar relitigation of the claim altogether.” (Ibid.)

Here, the bankruptcy court orders attached to Defendant’s request for judicial notice establish that the claim for declaratory relief in this action seeking the existence and enforceability of AAPC’s liens pursuant to its two Family Law Attorney’s Real Property Liens (the “FLAPRLs”) are identical to what was previously litigated and adjudicated in Defendant’s Chapter 11 bankruptcy case filed on February 14, 2014 entitled In re Robert Boyajian, Case No. 8:14-bk-10918-ES (the “Bankruptcy Action”); Bankruptcy Action. (See Exs. 1-2 to Defendant’s Request for Judicial Notice.) Plaintiff also concedes that the two of the three elements of res judicata are met, i.e., same cause of action and final judgment.

Plaintiff argues that claim preclusion does not apply because the two actions involved different parties and there is no privity between them. Plaintiff argues that in the bankruptcy action, the debtor was Robert Boyajian in his individual capacity as the reorganized debtor, and in this case the defendant is Robert Boyajian in his capacity as the personal representative and administrator of the Layla Boyajian probate estate. Plaintiff argues that its claim is against Layla Boyajian’s probate estate, and not against Robert Boyajian individually. Plaintiff also argues that Layla Boyajian and Robert Boyajian are not in privity with each other.

Layla Boyajian was the co-owner of the real property she pledged as security for the FLARPLs and had a “direct financial stake in the outcome of the reorganization.” She was therefore an interested party in the Bankruptcy Action, and the Bankruptcy Court necessarily determined property rights belonging to Layla and, by extension, her estate. Defendant argues that Plaintiff overlooks the in rem nature of the bankruptcy proceedings, and that the Bankruptcy Court’s order determined the existence and validity of Plaintiff’s

alleged lien interests in specific property (the Inn) and its sale proceeds, and that order is binding on all persons claiming an interest in that property.

11 U.S.C.A. § 1109(b) states: “A party in interest, including the debtor, the trustee, a creditors' committee, an equity security holders' committee, a creditor, an equity security holder, or any indenture trustee, may raise and may appear and be heard on any issue in a case under this chapter.” (11 U.S.C.A. § 1109(b).) A “party in interest” is one who may financial responsibility for a bankruptcy claim. (Truck Ins. Exchange v. Kaiser Gypsum Company, Inc. (2024) 602 U.S. 268, 271.)

Here, Layla Boyajian was an interested party in the Bankruptcy Action. The present action involves the same parties or party in privity with a party in the Bankruptcy Action as Robert Boyajian is defendant here as a personal representative and administrator of the Estate of Layla Boyajian. The demurrer to the Complaint is SUSTAINED, without leave to amend on the ground that it is barred by the doctrine of claim preclusion.

Statute of Limitations

“A general demurrer based on the statute of limitations is only permissible where the dates alleged in the complaint show that the action is barred by the statute of limitations.” (Roman v. County of Los Angeles (2000) 85 Cal.App.4th 316, 324.) “The running of the statute must appear ‘clearly and affirmatively’ from the dates alleged. It is not sufficient that the complaint might be barred. [Citation.] If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer.” (Id. at pp. 324-325.)

Code of Civil Procedure section 366.2 states, in part: “If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be

commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.” (Code Civ. Proc. § 366.2(a).) The limitations period for commencement of an action may be tolled pursuant to “Part 4 (commencing with Section 9000) of Division 7 of the Probate Code (creditor claims in administration of estates of decedents).” (Code Civ. Proc. § 366.2(b)(2).)

Probate Code section 9352 states, in part: “The filing of a claim or a petition under Section 9103 to file a claim tolls the statute of limitations otherwise applicable to the claim until allowance, approval, or rejection.” (Prob. Code § 9352(a).)

Layla Boyajian died on December 17, 2020. (Ex. 5 to Defendant’s RJN.) Therefore, an action may have been commenced until December 17, 2021, and the one-year limitation period could be tolled if a claim or petition was filed during that time. Plaintiff filed a creditor’s claim on June 16, 2023, well after the one-year statute of limitations already expired. Plaintiff’s instant action was filed on December 16, 2024, and there was no tolling. The demurrer to the Complaint is SUSTAINED, without leave to amend, on the independent ground that it is barred by the statute of limitations.

To the extent Plaintiff argues that some sort of notice was required to have been given but was not, Plaintiff cites to no authority providing that it must receive notice of the date of death, or be given notice of administration or issuance of general letters in order to trigger the statute of limitations under Code of Civil Procedure section 366.2. The Court may treat an argument as waived where no legal authority supporting the argument is cited. (Hood v. Gonzales (2019) 43 Cal.App.5th 57, 73-74.) The court is not required to examine undeveloped claims or to supply arguments for the litigants. (See Maral v. City of Live Oak (2013) 221 Cal.App.4th 975, 984-985; Mansell v. Board of Administration (1994) 30 Cal.App.4th 539, 546; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 852 [holding that failure to make reasoned legal argument forfeits claim].)

		Defendant's request for attorney's fees is not properly made by way of this demurrer. The request is DENIED, without prejudice. The Court GRANTS Defendant's requests for judicial notice. Defendant is ORDERED to prepare and submit proposed judgment of dismissal. Defendant to give notice.
103	Beasley vs. Soheil, 2024-01411587	Motions to be Relieved as Counsel – GRANTED Samuel Ogbogu ("Moving Attorney") moves to be relieved as counsel of record for plaintiffs Rodney Nelson and Pamela Freeman. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements have been satisfied. Thus, the motions are GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
104	Chrisman vs. Norm Reeves Inc, 2025-01532240	Motion for Leave to File a Cross-complaint – GRANTED Defendant Wuerer Family Partnership ("Defendant") moves for an order granting it leave to file a cross-complaint against Norm Reeves, Inc. and Coastal Auto Sales, Inc., dba Norm Reeves Honda Superstore Huntington Beach. No opposition has been filed. Defendant's proposed cross-complaint includes causes of action for express and implied indemnity, declaratory relief and apportionment of fault. Defendant owns the subject property underlying plaintiff's action and leases the property to the proposed cross-defendants. The